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Case Number: 25SMCV02120 Hearing Date: September 11, 2026 Dept: 205

HEARING DATE: September 11, 2026

JUDGE/DEPT: Moreton/Beverly Hills, 205

CASE NAME: Banana Republic, LLC v. BMB Commercial Corp., et al.

CASE NUMBER: 23SMCV02120

COMP. FILED: April 24, 2025

PROCEEDINGS: REQUEST FOR ENTRY OF DEFAULT JUDGMENT

MOVING PARTY: Banana Republic, LLC

RESPONDING PARTY: BMB Commercial Corp.

BACKGROUND

This is a breach of lease case. Plaintiff Banana Republic and Defendant BMB Commercial Corp. entered into a written commercial lease agreement (the "Lease") concerning premises located at 8585 Melrose Avenue, West Hollywood, California 90069 (the "Premises"). (Lopez Decl. ¶3, Ex. A, Bauer Decl. ¶3, Ex. A.) Pursuant to the Lease, Banana Republic provided a security deposit in the amount of \$201,891.00 (the "Security Deposit") as security for the performance of its obligations under the Lease. (Lopez Decl. ¶¶3-4, Ex. A.)

Section 6 of the Lease provides that the Security Deposit, or any balance thereof, was to be returned to Banana Republic within ten (10) business days following expiration of the Lease term. (Ex. A, §6.) The Lease expired on July 31, 2024, and Banana Republic surrendered possession of the Premises to Defendant on or before that date in accordance with the Lease. (Bauer Decl. ¶¶4-5, Ex. A [Basic Lease Provision (F)]; see also Lopez Decl. ¶6.) Accordingly, under the terms of the Lease, the Security Deposit became due no later than August 15, 2024. (See Ex. A, §6; Lopez Decl. ¶7.)

Despite Banana Republic's compliance with the Lease, Defendant failed to return any portion of the Security Deposit by the August 15 deadline. (Lopez Decl. ¶8.) Banana Republic thereafter issued demands seeking reimbursement of the Security Deposit, but Defendant continued to refuse to return the funds. As a result of Defendant's failure to return the Security Deposit, Banana Republic filed this action on April 24, 2025 seeking recovery of the Security Deposit, prejudgment interest, attorneys' fees, and costs.

During discovery in this action, Defendant admitted that it had no basis for withholding \$176,662.50 of the Security Deposit. (Allender Decl. ¶7.) Despite those admissions, Defendant did not issue any payment until January 16, 2026, when it provided a partial refund in the amount of \$176,662.50. (Lopez Decl. ¶9.)

On May 12, 2026, the Court granted Banana Republic's motion to strike Defendant's answer based on Defendant's suspended corporate status and entered default against Defendant. The Court also ordered Plaintiff to submit a default judgment package.

After application of the partial refund, the remaining unpaid principal balance owed to Banana Republic is \$25,228.50. (Lopez Decl. ¶10.) Further, pursuant to Section 31.10 of the Lease, Banana Republic is entitled to interest at the rate of ten percent (10%) per annum on amounts that were paid late as well as amounts due and unpaid under the Lease. (Lopez Decl. Ex. A, §31.10 at p. 24) Additionally, pursuant to Section 29 of the Lease, Banana Republic is entitled to recover its reasonable attorneys' fees and costs incurred in enforcing its rights under the Lease. (Lopez Decl. Ex. A, §29 at p. 22; Allender Decl. ¶¶8 11.)

Plaintiff did not file a proof of service of the summons and complaint as required by the rules. Notwithstanding, Defendant appeared, filed an answer and did not argue defective service. The Court thereafter struck Defendant's answer because Defendant was a suspended corporation and therefore had no ability to file an answer or otherwise defend against this action.

On May 12, 2026, following Plaintiff's filing of a Request for Entry of Default, the Clerk of the Court entered default against Defendant. This hearing is on Plaintiff's request for entry of default judgment.

REQUEST FOR RELIEF

Banana Republic seeks a total of \$92,255.35, inclusive of the remaining unpaid principal balance of \$25,228.50, attorneys' fees in the amount of \$35,739.35, costs in the amount of \$1,565.84, and prejudgment interest in the amount of \$29,721.66 through June 11, 2026, plus \$6.91 per day in additional prejudgment interest from June 12, 2026 through the date judgment is entered.

ANALYSIS

Code Civ. Proc. § 585 sets forth the two options for obtaining a default judgment. First, where the plaintiff's complaint seeks compensatory damages only, in a sum certain which is readily ascertainable from the allegations of the complaint or statement of damages, the clerk may enter the default judgment for that amount. However, if the relief requested in the complaint is more complicated, consisting of either nonmonetary relief, or monetary relief in amounts which require either an accounting, additional evidence, or the exercise of judgment to ascertain, the plaintiff must request entry of judgment by the court. In such cases, the plaintiff must affirmatively establish his entitlement to the specific judgment requested. (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 287.) Section 585 also allows for interest, costs and attorney fees, where otherwise allowed by law. (Code Civ. Proc., § 585(a).)

Multiple specific documents are required, such as: (1) form CIV 100, (2) a brief summary of the case; (3) declarations or other admissible evidence in support of the judgment requested; (4) interest computations as necessary; (5) a memorandum of costs and disbursements; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought

or an application for separate judgment under Code Civ. Proc. § 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (CRC Rule 3.1800.)

Here, Plaintiff has properly complied with all the substantive and procedural requirements for a default judgment. Plaintiff declares via the declaration of Jonathan Bauer, Senior Director, Store Development North America - Construction, Store Maintenance & Minor Remodels at Gap Inc. (Plaintiff's parent company) that the parties entered into a Lease; the Lease expired on July 31, 2024, and Plaintiff surrendered the premises to Defendant on the same date. (Bauer Decl. ¶¶ 3-5.)

Plaintiff also declares via the declaration of Elizabeth Lopez, the Senior Director of Real Estate and Payroll Accounting for Gap, Inc. (Plaintiff's parent company) that Defendant did not return any portion of the Security Deposit by the deadline set out in the Lease; Defendant did not make any payment to Banana Republic relating to the Security Deposit until January 16, 2026, when Defendant issued a partial refund in the amount of \$176,662.50; and after application of the partial refund, the remaining unpaid principal balance of the Security Deposit owed to Banana Republic is \$25,228.50. (Lopez Decl. ¶¶ 8-10.)

The evidence submitted (the Lease) is properly authenticated by the declarations of Mr. Bauer and Ms. Lopez. Plaintiff has submitted the declaration of Ms. Lopez as to the calculation of interest, which under the Lease is at the rate of 10% per annum. Ms. Lopez attests that Defendant owes prejudgment interest of \$29,721.66 which continues to accrue at the rate of \$6.91 per day. (Allender Decl. ¶ 15.)

Additionally, Plaintiff requests attorneys' fees and costs. Section 29 of the Lease provides that a prevailing party in any action brought to enforce the Lease is entitled to reasonable attorneys' fees and costs. (Ex. A to Lopez Decl.) Plaintiff has submitted the declaration of its counsel, Daniel Allender of Robins Kaplan, as to the fees and costs that were incurred to prosecute the action.

Mr. Allender's declaration attaches a detailed time record that reflects the hourly rates, time expended and tasks performed. (Ex. B to Allender Decl.) Under California law, detailed time records are entitled to a presumption of credibility. (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.) Mr. Allender attests that his firm spent 56.6 hours to prosecute this litigation over a period of 14 months, and the hours were reasonably and necessarily incurred. (Allender Decl. ¶¶ 13, 15.) In total, Plaintiff seeks fees of \$35,739.35. (Allender Decl. ¶ 12.)

Mr. Allender also attests that Plaintiff incurred \$1,565.84 in costs. His declaration attaches a summary of the costs which include filing fees, messenger fees and photocopying costs. (Ex. C to Allender Decl.)

Further, Plaintiff correctly completed JC Form CIV-100 in a manner that would not void or put at issue the entry of default, provided a declaration of non-military status, requested damages in amounts supported by the filings and not in excess of the amount stated in the Complaint, requested dismissal of the defendants and filed a proposed judgment (JUD-100). As default has already been entered, default judgment is appropriate here.

CONCLUSION AND ORDER

For the foregoing reasons, Plaintiff's Request for Default Judgment is GRANTED. Judgment in the amount of \$92,255.35 is entered against Defendant BMB Commercial Corp.